

Permissions guide

You need permission from the rightsholder(s) of any third-party material to use it in your book if the original source is under copyright.

If you think permission is not required for a piece of third-party material, you will need to provide proof. This includes where the original work is copyright exempt/expired/licenced and where you are invoking fair use/dealing.

You must document information on the use of and permission for all third-party material in your book in the [Artwork and third-party material permissions log](#) and submit this and the [Permissions declaration form](#) when you submit your final manuscript.

Unless you have made an alternative arrangement in writing with your Commissioning Editor, it is your responsibility as author (or for edited books, jointly as editor with your contributors) to obtain, and bear the cost of, third-party material and permissions.

Permissions can be complicated, time-consuming, and expensive. Our primary piece of advice is to avoid third-party material and avoid permissions. If you feel third-party material is necessary, get the process started as early as possible as it can take time for rightsholders to respond.

Overview of the permissions process

1. Identify third-party material
2. Confirm that third-party material is necessary
3. Determine copyright status of third-party material
4. Apply for permission
5. Document permission
6. Submit permission

Disclaimer

We have collated the information in this guide to help you with permissions, but we cannot legally judge if something needs permission. Our policy is to err on the side of caution. We encourage you to seek legal advice.

We will remove any third-party material for which evidence of permission or exemption is not provided.

1. Identify third-party material

Third-party material comprises anything you have not created specifically for the forthcoming work we are publishing. This includes:

- Material you or your company/institution has created previously, whether published or not
- Material from other T&F publications
- Redrawn artwork¹
- Third-party material included in previous versions (such as dissertations) or editions

2. Confirm that third-party material is necessary

Referring to, describing, or discussing third-party material is often enough to serve the intended purpose of using it. If including third-party material is unavoidable, use only as much as is necessary to support the original content you are basing upon it.

3. Determine copyright status of third-party material

About authors, rightsholders and sources

The author of the source of material is not necessarily the creator or rightsholder of the material – they may have included it (presumably with permission) from a third-party. Please ensure you check the attribution/credit line or acknowledgements.

The author/creator is not necessarily the appropriate rightsholder from whom to secure permission (even if they are the copyright holder); the publisher or curator of the material will usually hold reproduction/distribution rights and is usually the best place to start.

About copyright

Copyright protects creative works² as intellectual property, preserving the interests of the creator/rightsholder(s) and controlling use of material by others. The Wikipedia entry on copyright is a good place to start: <https://en.wikipedia.org/wiki/Copyright/>

And primary source information on US and UK Copyright can be found here:

UK Intellectual Property Office: <https://www.gov.uk/topic/intellectual-property/copyright>

US Copyright Office: <https://www.copyright.gov/>

Creative commons and open access

Copyright works may be made available via a creative commons licence, which is also the mechanism by which most publications are made open access. There are numerous creative commons licences that allow varying degrees of freedom to reproduce material. See creativecommons.org for more information and links to creative commons media and sources.

If you want to use any third-party material in your open access book, you must additionally make sure that the permission granted by the rightsholders includes re use in an open access publication, stipulating which creative commons licence it will be published under.

Public Domain

Works in the public domain are those for which no exclusive intellectual property rights apply. These are usually therefore available for use without payment or permission, although attribution is ordinarily required. See [Wikipedia's entry on the public domain](#), which covers copyright expiry timeframes and plenty more.

Warning: the internet

It can be difficult to trace the original source of material and prove that it is in the public domain. There is an important difference between a work being 'publicly available' because someone has posted it on the internet, and 'in the public domain'

Material is not in the public domain simply because it is available online, where material is frequently posted without the knowledge or permission of the rightsholder(s).

Remember that is our policy to exclude anything without proof that it is usable, so you will need to provide this if you wish to use something in your work.

Fair Use and Fair Dealing

Fair use (US) and fair dealing (UK) are related legal concepts that allow the inclusion of brief excerpts or limited illustrations from copyright work without explicit permission.

There is, deliberately, no definition of either fair use or fair dealing (i.e. "up to 400 words"). Each case must be analysed to determine the reasonableness of the use.

Both US and UK law provide clear guidance for analysing fair use based on nature of the new publication, the purpose or character of the use, the amount of material being used (especially as a proportion of the original work) and the potential impact that its use may have on the original publication. We urge you to review information on this if you are considering relying fair use/fair dealing to justify the use of copyright material:

UK: <https://www.gov.uk/guidance/exceptions-to-copyright#fair-dealing>

US: <https://www.copyright.gov/fair-use/more-info.html>

Specific T&F policy on fair use/fair dealing

As a commercial publisher, the scholarly or education nature of our publications is rarely a justification for fair use or fair dealing.

Epigraphs do not constitute fair use or fair dealing and T&F do not allow for their inclusion. If you wish to include a quotation it must be embedded and actively addressed in your text.

Commonly used sources of permission-free material

Please review the information provided for any individual document or source to confirm in each specific case.

- Publications by the US federal government
- UK government and legal materials (Crown copyright):
<https://www.parliament.uk/site-information/copyright/open-parliament-licence/>
<https://www.nationalarchives.gov.uk/doc/open-government-licence/version/3/>
- European Court reports and judgments, treaties and regulations reproduced from EUR-Lex, Europa or Curia
- Images from Google Earth/Maps and Google Ngram:
<https://books.google.com/ngrams/info>
<https://www.google.com/permissions/geoguidelines/>
- Copyright does not apply to raw data, but rather how it is put together and transformed into an original creative work. You can usually use raw data to construct your own table without requiring permission, but if you intend to use an existing layout, format or selection (e.g. a database, table or graph), you must secure permission
- Our science-related imprints and lists³ can take advantage of the STM Permission Guidelines (of which T&F is a member and signatory) to use small portions of works published by other signatories for free, and sometimes without seeking permission. See: www.stm-assoc.org/permissions-guidelines/

Resources for finding the rightsholder(s)

A list of library holding directories, rights management societies and publisher associations is listed below that may help you track down the rightsholder of a work.

<https://www.hrc.utexas.edu/research/watch/about/>

<https://www.dacs.org.uk/>

<https://discover.libraryhub.jisc.ac.uk/>

https://www.literarymarketplace.com/lmp/us/index_us.asp

<https://arsny.com/>

<https://publishers.org/>

<https://www.copyright.com/>

Taylor & Francis controls the rights of many titles previously published by other imprints that have subsequently become part of the Taylor & Francis portfolio. You still need to apply for permission to reproduce any third-party material published under these imprints.

These include Allen & Unwin (select titles), Architectural Press, Ashgate, Baywood, Bloomsbury Academic (Photography and Anthropology), Butterworth-Heinemann UK, Cavendish Press, CRC Press, Croom Helm, David Fulton, E & FN Spon, Earthscan, Eye on Education, Falmer Press, Focal Press, Greenleaf Publishing/GSE Research, Holcomb Hathaway, Karnac Publishing, Lawrence Erlbaum, M.E. Sharpe, Methuen & Co. (the academic list), Paradigm Publishers, Pickering & Chatto, Psychology Press, Pyrczak, Routledge, Routledge & Kegan Paul, RoutledgeCurzon, RoutledgeFalmer, Spon Press, Tavistock Publications, Transaction Publishers, UCL Press, Westview Press, and Willan.

If you cannot identify or locate the rightsholder, or if they do not respond, please remove the material, and find an alternative.

4. Apply for permission

Unless otherwise agreed in writing with your T&F Editor, you will need

Commercial, non-exclusive, worldwide English language rights in all forms and media, including print and eBook form, for the lifetime of the edition.

Please discuss with your T&F Editorial Assistant if any third-party rightsholder requests anything more restrictive than the above or requires additional details (e.g. expected price, year of publication).

There are three options for requesting permission depending on the material and the rightsholders' requirements:

1. Request and obtain permission quickly through the [Copyright Clearance Center](#) if possible.

2. Follow the guidance on the work's page on the rightsholder's website or in their information section, especially if you are contacting a publisher (for example www.routledge.com/info/permissions). There may be a specific form or email address for permission requests.
3. Email your request to the likely rightsholder. Some suggested wording is included [below](#).

Be prepared to pay for permission and to negotiate any fees demanded (underscoring to copyright holders that the use, though commercial, is for educational or scholarly purposes, is a good tactic).

Permission email template

Edit/complete any portions in [square brackets]

Subject line: Permission request for [Routledge/CRC Press] book

I am writing to request permission to reprint the following material in a book that [Routledge/CRC Press], will soon be publishing in the [academic/professional] market.

The material for which I am requesting permission is:

[insert selection's bibliographic info., including page range, word count if applicable]
to be reprinted in:

[Insert title] by [author(s)]; proposed date of publication is [Season and year].

Approximately [#] pages

List price: [\$/£#] in print and eBook.

We require commercial, non-exclusive, worldwide English language rights in all forms and media, including print and eBook form, for the lifetime of the edition.

Appropriate credit will be given in the book's acknowledgements and/or alongside the material. Please indicate your preferred wording.

If you have any questions about this request, please contact me at [insert contact info.].
Many thanks for your attention to this request.

5. Document permission

Use the [Artwork and third-party material permissions log](#) to keep track of your third-party materials, their permissions status, and your evidence.

Ensure that appropriate credit has been given in your manuscript, either alongside the material, or in an acknowledgements section. Follow any requirements given by the rightsholder in terms of location and wording.

6. Submit permission

Submit your [Artwork and third-party material permissions log](#), and all permissions evidence along with the rest of your manuscript materials on or before the due date. You will also need to sign and return the [Permissions declaration form](#).

Permissions will be assessed as part of the manuscript assessment. Production will not begin until all aspects of the manuscript, including permissions, are finalised. Material without adequate permission (or evidence that it is not required) will be removed.

Appendix A: non-exhaustive list of works potentially under copyright

Poetry

Prose

Dialogue (from film, theatre, television, etc.)

Lyrics

Transcripts

Music composition/notation

Private correspondence and personal information (including letters and email)

Translations

Epigraphs⁴

Software

Advertisements

Trademarks and logos

Images

Photographs (including of paintings and sculptures)

Images in which individuals are identifiable, especially children

Illustrations, sketches, and diagrams

Graphic art

Screenshots and screen grabs

ClipArt

Maps

Fiction and non-fiction

Books, essays, graphic novels, journal, magazine or newspaper articles, white papers

Letters and interviews

Social media, e.g. Facebook, Twitter, Instagram, Pinterest, YouTube, etc.

Blogs, websites, and search engines (including Wikipedia and Google)

Works by students/children

¹ Unless you have substantially transformed the original through enhancement or character, i.e. to make a new work or a new critical point)

² A representative list of creative works that may be subject to copyright is provided in this appendix.

³ CRC Press, Psychology Press, Routledge Built Environment and Routledge Behavioural Sciences.

⁴ As a rule, we do not allow epigraphs in our titles. These serve as an embellishment and are more suited to fiction or trade publishing. Should you wish to use a quotation in your work, please embed it in the text with suitable context and discussion.